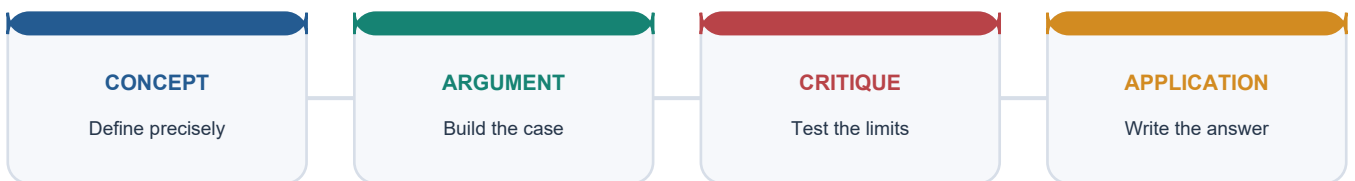


SOLVED PRACTICE WORKBOOK

Political Parties - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Polity 43 - Political Parties - Solved Practice Workbook

Subject: Polity | **GS Paper:** GS-II | **Legal control date:** 8 September 2026

Practice discipline: exactly 32 original MCQs before the PYQ section; answer order ABCD repeated eight times; 128 substantive option-specific explanations; 32 question-specific traps; verified relevant PYQ wording with official-key discipline; exactly six original Mains models.

Exactly **32 original MCQs** appear before the PYQ section. Questions 25-32 are targeted close-option remediation. Correct-answer sequence: ABCDABCDABCDABCDABCDABCDABCDABCD.

BASIC MCQS / REMEDIATION

MCQ 1. Legal identity

Which statement most accurately locates political parties in Indian law?

A. They are associations regulated through a constitutional-statutory-order patchwork rather than one comprehensive party code. B. They are private associations wholly outside election law. C. They are constitutional offices created by the Tenth Schedule. D. They become State instrumentalities immediately on registration.

Answer: A. They are associations regulated through a constitutional-statutory-order patchwork rather than one comprehensive party code.

Option-specific explanations:

- **A:** Correct: different legal instruments regulate different party functions.
- **B:** This option ignores Section 29A, the Symbols Order, finance law and campaign regulation.
- **C:** This option confuses a narrow anti-defection reference with creation of a constitutional office.
- **D:** This option overstates registration; Section 29A does not automatically make a party the State.

Examiner trap 1: First identify the legal layer; public electoral importance does not itself create constitutional-office status.

MCQ 2. Party functions

Which function most clearly distinguishes a political party from a pressure group?

A. Articulating an interest before public authorities. B. Seeking governmental office through elections and accepting responsibility for a broad programme. C. Mobilising opinion on a public issue. D. Submitting recommendations to a legislative committee.

Answer: B. Seeking governmental office through elections and accepting responsibility for a broad programme.

Option-specific explanations:

- **A:** This option can be performed by parties and pressure groups, so it is not the clearest distinction.
- **B:** This option is correct because office-seeking and general governmental responsibility are defining party features.
- **C:** This option is common to movements, pressure groups and parties alike.
- **D:** This option is an influence technique and does not require contesting elections.

Examiner trap 2: Do not reduce the distinction to organisation or advocacy; focus on election-based acquisition of governing power.

MCQ 3. Party-system classification

A country permits free competition, but one party repeatedly wins while opposition parties retain legal and electoral space. This is best described as:

A. A one-party State. B. A two-party monopoly. C. A dominant-party system. D. A non-party democracy.

Answer: C. A dominant-party system.

Option-specific explanations:

- **A:** This option is wrong because a one-party State excludes meaningful competitive alternation.
- **B:** This option is wrong because the stem does not identify two principal competitors or a monopoly.
- **C:** Correct: dominance can exist within genuine multi-party competition.
- **D:** This option is wrong because organised parties are expressly present.

Examiner trap 3: One-party dominance is an empirical pattern, not constitutional prohibition of opponents.

MCQ 4. Constitutional references

Which pair provides the constitutional bridge from the Tenth Schedule to membership disqualification?

A. Articles 75(1B) and 164(1B). B. Articles 14 and 19(1)(c). C. Articles 324 and 327. D. Articles 102(2) and 191(2).

Answer: D. Articles 102(2) and 191(2).

Option-specific explanations:

- **A:** This option concerns bounded ministerial disability after specified defection disqualification.
- **B:** This option supplies general rights norms, not the express Tenth-Schedule bridge.
- **C:** This option concerns election supervision and legislative power over elections, not the disqualification bridge.
- **D:** This option is correct for Parliament and State legislatures respectively.

Examiner trap 4: Keep the disqualification bridge separate from the later office bars.

MCQ 5. Section 29A applicant

Who may apply under Section 29A to register as a political party?

A. An association or body of individual citizens of India calling itself a political party. B. Any group of voters certified by a District Magistrate. C. Any company incorporated in India. D. Only an association already represented in Parliament.

Answer: A. An association or body of individual citizens of India calling itself a political party.

Option-specific explanations:

- **A:** This option reproduces the statutory category and is correct.
- **B:** This option invents a District Magistrate certification route absent from Section 29A.
- **C:** This option is wrong because the statutory applicant is an association/body of individual citizens, not any company as such.
- **D:** This option is wrong because legislative representation is a disclosed particular, not an entry condition.

Examiner trap 5: Registration is open to qualifying citizen associations; electoral success is relevant later to recognition.

MCQ 6. Application timing

For an association formed after commencement of the 1988 amendment, Section 29A ordinarily requires application:

A. Within sixty days of the first election contested. B. Within thirty days of formation. C. Before adopting a party constitution. D. Only after enrolling one thousand members.

Answer: B. Within thirty days of formation.

Option-specific explanations:

- **A:** This option mixes the historical sixty-day transition with an invented election trigger.

- **B:** This option is correct under Section 29A(2)(b).
- **C:** This option is impossible because the application must be accompanied by the relevant memorandum or rules.
- **D:** This option imports a guideline-style numerical condition not found in the subsection.

Examiner trap 6: The sixty-day clause was transitional for bodies already existing at commencement.

MCQ 7. Allegiance clause

Which item is NOT part of the express Section 29A(5) declaration?

A. True faith and allegiance to the Constitution. B. Principles of socialism, secularism and democracy. C. Commitment to a presidential form of government. D. Sovereignty, unity and integrity of India.

Answer: C. Commitment to a presidential form of government.

Option-specific explanations:

- **A:** This option is expressly required in the party memorandum or rules.
- **B:** This option lists the three expressly named principles.
- **C:** This option is correct because no commitment to a presidential system is required.
- **D:** This option is expressly included in the statutory clause.

Examiner trap 7: Do not add preferred institutional models to the statutory constitutional-allegiance formula.

MCQ 8. ECI registration decision

Before refusing registration under Section 29A, the ECI must:

A. Obtain approval from the Union Cabinet. B. Refer the issue to the Supreme Court. C. Conduct a nationwide membership referendum. D. Give the association's representatives a reasonable opportunity of being heard.

Answer: D. Give the association's representatives a reasonable opportunity of being heard.

Option-specific explanations:

- **A:** This option would compromise the Commission's statutory decision and is not required.
- **B:** This option is wrong because the ECI decides at first instance.
- **C:** This option is absent from the statute and administratively unrealistic.
- **D:** This option is correct under Section 29A(7).

Examiner trap 8: Finality in Section 29A(8) does not erase constitutional judicial review.

MCQ 9. Deregistration

Indian National Congress (I) v Institute of Social Welfare is authority for which proposition?

A. The ECI has no general Section 29A deregistration power, subject to narrow exceptional situations. B. The ECI may cancel any party whenever internal elections are delayed. C. A party automatically loses registration when it loses recognition. D. Only Parliament may initially register a political party.

Answer: A. The ECI has no general Section 29A deregistration power, subject to narrow exceptional situations.

Option-specific explanations:

- **A:** This option correctly states the limited-power holding.
- **B:** This option is the overbroad power the judgment rejects.
- **C:** This option confuses recognition status with continued statutory registration.
- **D:** This option ignores the express ECI registration function.

Examiner trap 9: Do not convert a recognised regulatory gap into a power implied from administrative convenience.

MCQ 10. Registration versus recognition

Which sequence is legally correct?

A. Recognition under the Constitution, then registration under the Symbols Order. B. Registration under Section 29A; recognition under the Symbols Order if performance criteria are met. C. Reserved symbol first; registration follows automatically after an election. D. Registration and recognition are the same single decision.

Answer: B. Registration under Section 29A; recognition under the Symbols Order if performance criteria are met.

Option-specific explanations:

- **A:** This option assigns both stages to incorrect sources.
- **B:** This option is correct and preserves the entry/performance distinction.
- **C:** This option reverses the legal order and invents automatic registration.
- **D:** This option erases the registered-unrecognised category.

Examiner trap 10: A party may remain validly registered without National or State recognition.

MCQ 11. National recognition

Which is an independent route to National-party recognition under the Symbols Order?

A. Two Assembly seats in each of two States. B. Eight per cent of votes in any one State. C. Recognition as a State party in at least four States. D. A reserved symbol used for three elections.

Answer: C. Recognition as a State party in at least four States.

Option-specific explanations:

- **A:** This option is not one of the prescribed National alternatives.
- **B:** This option is a State-level vote-share route, not by itself National recognition.
- **C:** This option is a correct alternative National test.
- **D:** This option mistakes a consequence/identifier for a performance criterion.

Examiner trap 11: Do not merge State criteria with National criteria.

MCQ 12. Two-per-cent route

Under the Lok Sabha seat-share route to National recognition, the returned candidates must come from:

A. At least two States. B. Every region of India. C. At least four States. D. At least three States.

Answer: D. At least three States.

Option-specific explanations:

- **A:** This option understates the territorial-spread requirement.
- **B:** This option uses a political phrase with no prescribed legal meaning.
- **C:** This option imports the four-State number from different National alternatives.
- **D:** This option is correct for the two-per-cent Lok Sabha route.

Examiner trap 12: The three-State requirement belongs to the two-per-cent seat route, not automatically to the six-per-cent route.

MCQ 13. State recognition

Which is a valid alternative State-party criterion?

A. Three per cent of Assembly seats or three seats, whichever is more. B. Three per cent of Assembly seats or three seats, whichever is less. C. Six per cent of votes without any additional condition in every route. D. One Lok Sabha seat regardless of the State's allotted strength.

Answer: A. Three per cent of Assembly seats or three seats, whichever is more.

Option-specific explanations:

- **A:** This option correctly states the Assembly-seat alternative.
- **B:** This option reverses 'whichever is more' and lowers the test.
- **C:** This option ignores that the six-per-cent routes also require returned members.
- **D:** This option omits the one-per-twenty-five formula and its fraction rule.

Examiner trap 13: Words such as 'more' and 'in addition' decide close recognition options.

MCQ 14. Reserved symbol

A reserved symbol is best understood as:

A. Private property owned by party office-bearers. B. A regulated electoral entitlement reserved for a recognised party's duly set-up candidates. C. A symbol automatically reserved for every Section 29A applicant. D. A mark that may be divided equally after a split.

Answer: B. A regulated electoral entitlement reserved for a recognised party's duly set-up candidates.

Option-specific explanations:

- **A:** This option contradicts Sadiq Ali's property holding.
- **B:** This option is correct and ties reservation to recognition and valid authorisation.
- **C:** This option confuses registration with recognition.
- **D:** This option is wrong because the ECI must resolve the identity claim; the symbol is not divisible property.

Examiner trap 14: Use entitlement and allotment language, not ownership language.

MCQ 15. Free symbol

Which candidate most characteristically relies on the free-symbol pool?

A. A duly set-up candidate of a recognised party using its reserved symbol. B. A candidate whose party has privately purchased a symbol. C. A candidate of a registered-unrecognised party, subject to allotment rules. D. A nominated member of the Rajya Sabha.

Answer: C. A candidate of a registered-unrecognised party, subject to allotment rules.

Option-specific explanations:

- **A:** This option ordinarily receives the party's reserved symbol.
- **B:** This option invents private purchase in a public-law allotment regime.
- **C:** This option is correct because registered-unrecognised parties do not thereby possess a reserved symbol.
- **D:** This option does not contest a Rajya Sabha nomination through a popular-election symbol ballot.

Examiner trap 15: Free does not mean unregulated; ECI priority and allotment rules still apply.

MCQ 16. Paragraph 15 trigger

Paragraph 15 is principally triggered when:

A. A legislator violates a whip. B. Any two independent candidates prefer the same free symbol. C. A party fails to file an income-tax return. D. Two rival groups of a recognised party each claim to be that party.

Answer: D. Two rival groups of a recognised party each claim to be that party.

Option-specific explanations:

- **A:** This option belongs to the Tenth Schedule and the Speaker's jurisdiction.
- **B:** This option is handled through ordinary symbol allotment rules, not party-identity adjudication.
- **C:** This option engages tax and disclosure consequences.
- **D:** This option correctly states the recognised-party identity dispute.

Examiner trap 16: Identify the institution and legal consequence: ECI/symbol identity is not Speaker/defection.

MCQ 17. Sadiq Ali test

What did Sadiq Ali treat as valuable evidence in a party split?

A. Majority and numerical strength in organisational and legislative wings. B. Only the personal view of the former party president. C. Only the party's original manifesto. D. A compulsory vote of every primary member.

Answer: A. Majority and numerical strength in organisational and legislative wings.

Option-specific explanations:

- **A:** This option is correct and reflects the evidence actually assessed.
- **B:** This option was not treated as conclusive authority over the split.
- **C:** This option could not resolve the dispute where aims were not repudiated.
- **D:** This option was regarded as practically difficult, not an invariable legal requirement.

Examiner trap 17: The majority test is relevant and contextual, not a mechanical legislature-only rule.

MCQ 18. Kanhaiya Lal Omar

Kanhaiya Lal Omar primarily upheld:

A. A general ECI power to deregister parties. B. The validity of the Symbols Order under Article 324 read with election rules. C. The legal enforceability of every manifesto promise. D. A constitutional right of parties to own symbols.

Answer: B. The validity of the Symbols Order under Article 324 read with election rules.

Option-specific explanations:

- **A:** This option belongs to a different case and is substantively overbroad.
- **B:** This option is the precise holding.
- **C:** This option was not the issue and misstates manifesto law.
- **D:** This option contradicts the public-law symbol regime.

Examiner trap 18: Article 324 is gap-filling and election-linked, not a charter of unlimited party supervision.

MCQ 19. Subhash Desai

Which statement best reflects Subhash Desai (2023)?

A. The legislature party alone may appoint the political party's whip. B. An ECI symbol decision automatically erases earlier defection. C. Political party and legislature party are distinct, and party authorisation matters for whip/leader appointments. D. The Governor decides which faction is the real party.

Answer: C. Political party and legislature party are distinct, and party authorisation matters for whip/leader appointments.

Option-specific explanations:

- **A:** This option reverses the Court's party-authorisation principle.

- **B:** This option collapses prospective symbol identity into past disqualification liability.
- **C:** Correct: this is the controlling rule tested for subhash desai.
- **D:** This option assigns an intra-party identity function to an institution that does not possess it.

Examiner trap 19: Legislative numbers are evidence, not automatic organisational sovereignty.

MCQ 20. Section 29B

Section 29B principally concerns:

A. Registration of party names. B. Disqualification for defection. C. Recognition as a State party. D. Voluntary contributions that parties may accept subject to statutory restrictions.

Answer: D. Voluntary contributions that parties may accept subject to statutory restrictions.

Option-specific explanations:

- **A:** This option belongs to Section 29A and related ECI procedure.
- **B:** This option belongs to the Tenth Schedule.
- **C:** This option belongs to the Symbols Order.
- **D:** Correct: this is the controlling rule tested for section 29b.

Examiner trap 20: Finance questions often test source labels more than numerical recall.

MCQ 21. Section 29C threshold

A contribution exceeding which amount is reportable under Section 29C's ordinary rule?

A. Rs 20,000. B. Rs 10,000. C. Rs 2,000. D. Rs 1,00,000.

Answer: A. Rs 20,000.

Option-specific explanations:

- **A:** Correct: the statute uses 'in excess of twenty thousand rupees'.
- **B:** This option is not the enacted Section 29C amount.
- **C:** This option resembles a tax-law cash-mode threshold and is not the Section 29C reporting trigger.
- **D:** This option overstates the disclosure threshold.

Examiner trap 21: The reporting threshold is neither a donation cap nor a candidate expenditure ceiling.

MCQ 22. Electoral trusts

Which statement correctly distinguishes an electoral trust from an electoral bond?

A. Both are anonymous bearer instruments. B. A trust is an approved intermediary with donor/distribution reporting; a bond was a bank-issued bearer instrument. C. A bond remains lawful after the 2024 judgment. D. A trust may distribute contributions only to unregistered groups.

Answer: B. A trust is an approved intermediary with donor/distribution reporting; a bond was a bank-issued bearer instrument.

Option-specific explanations:

- **A:** This option erases the trust's disclosure architecture.
- **B:** Correct: this is the controlling rule tested for electoral trusts.
- **C:** This option is false because the Scheme was invalidated.
- **D:** This option reverses the Section 29A-party eligibility route.

Examiner trap 22: Do not use 'electoral funding vehicle' as though all vehicles have the same disclosure design.

MCQ 23. Electoral bonds holding

The principal voter-information holding in *ADR v Union of India* (2024) rested on:

A. Article 300A. B. Article 21A. C. Article 19(1)(a). D. Article 368.

Answer: C. Article 19(1)(a).

Option-specific explanations:

- **A:** This option protects property and does not state the political-information holding.
- **B:** This option concerns education and was not the basis.
- **C:** Correct: the voter's right to information was central.
- **D:** This option governs constitutional amendment procedure.

Examiner trap 23: Remember the separate Article 14 analysis of unlimited corporate funding.

MCQ 24. Candidate disclosure

ADR (2002) and PUCL (2003) are most directly associated with:

A. Internal party primaries. B. Recognition of National parties. C. Paragraph 15 symbol disputes. D. Candidate affidavits and the voter's right to know.

Answer: D. Candidate affidavits and the voter's right to know.

Option-specific explanations:

- **A:** This option has not been judicially imposed as a universal party-selection rule.
- **B:** This option is governed by the Symbols Order.
- **C:** This option is associated with Sadiq Ali.
- **D:** Correct: this is the controlling rule tested for candidate disclosure.

Examiner trap 24: Candidate disclosure is not the same as party deregistration or pre-conviction disqualification.

MCQ 25. Rambabu Singh Thakur

Rambabu Singh Thakur requires parties selecting candidates with criminal antecedents to:

A. Publish antecedents and reasons connected to qualifications rather than mere winnability. B. Obtain a pardon from the Governor. C. Wait for conviction before any disclosure. D. Cancel the candidature whenever an FIR exists.

Answer: A. Publish antecedents and reasons connected to qualifications rather than mere winnability.

Option-specific explanations:

- **A:** This option states the direction accurately.
- **B:** This option has no role in candidate selection disclosure.
- **C:** This option defeats the pre-election right-to-know purpose.
- **D:** This option converts allegation into automatic exclusion without statutory basis.

Examiner trap 25: The remedy is disclosure and reason-giving, not judicial creation of a blanket pending-case bar.

MCQ 26. Lily Thomas boundary

Why must Lily Thomas be used cautiously in a political-parties answer?

A. It created the Symbols Order. B. It concerns conviction-based disqualification of legislators, not general deregistration of parties. C. It held all parties to be public authorities under RTI. D. It legalised electoral bonds.

Answer: B. It concerns conviction-based disqualification of legislators, not general deregistration of parties.

Option-specific explanations:

- **A:** This option is historically and legally unrelated.
- **B:** This option is correct and states the proper boundary.
- **C:** This option confuses a Supreme Court case with the CIC 2013 order.

- **D:** This option is the opposite of later electoral-bond litigation and not its subject.

Examiner trap 26: Use a case only for its proposition; famous names do not substitute for legal fit.

MCQ 27. Star campaigners

Under Section 77's explanation, the maximum notified leaders are ordinarily:

A. 40 for every registered association. B. 20 for a recognised party and 40 for another party. C. 40 for a recognised political party and 20 for another political party. D. Unlimited if the party pays.

Answer: C. 40 for a recognised political party and 20 for another political party.

Option-specific explanations:

- **A:** This option ignores the recognised/other distinction.
- **B:** This option reverses the statutory numbers.
- **C:** Correct: this is the controlling rule tested for star campaigners.
- **D:** This option invents a payment-based exception.

Examiner trap 27: The exclusion concerns specified travel; it does not exempt every rally expense.

MCQ 28. MCC

Which is the safest description of the Model Code of Conduct?

A. A constitutional schedule enforced only by courts. B. A voluntary party manifesto with no ECI role. C. A complete criminal code for every campaign wrong. D. A non-statutory election code whose directions interact with enforceable laws and ECI powers.

Answer: D. A non-statutory election code whose directions interact with enforceable laws and ECI powers.

Option-specific explanations:

- **A:** This option invents constitutional status.
- **B:** This option misunderstands the code and the Commission's administration.
- **C:** This option overstates penal enforceability.
- **D:** This option is correct and preserves both influence and legal limits.

Examiner trap 28: Avoid the false choice between 'law' and 'nothing'; identify which violation also fits a statute.

MCQ 29. Manifesto promises

After S. Subramaniam Balaji, which statement is safest?

A. Manifesto promises were not automatically corrupt practices under the then statutory text, and ECI guidelines were directed. B. No manifesto can ever be regulated. C. Every welfare promise is automatically a corrupt practice. D. Every promise is a judicially enforceable contract.

Answer: A. Manifesto promises were not automatically corrupt practices under the then statutory text, and ECI guidelines were directed.

Option-specific explanations:

- **A:** This option is correct and bounded.
- **B:** This option ignores ECI guidelines and other applicable laws.
- **C:** This option overstates Section 123 and the holding.
- **D:** This option confuses political programmes with contractual promises.

Examiner trap 29: Do not use the word 'freebie' as a self-executing legal conclusion.

MCQ 30. RTI status

Which statement accurately presents the RTI position?

A. The Supreme Court has conclusively declared every registered party a public authority. B. The CIC in 2013 held six named national parties to be public authorities, but compliance and final judicial settlement remain contested. C. Parliament enacted a comprehensive party RTI statute in 2014. D. The CIC order concerned only candidate affidavits.

Answer: B. The CIC in 2013 held six named national parties to be public authorities, but compliance and final judicial settlement remain contested.

Option-specific explanations:

- **A:** This option overclaims the judicial position and coverage.
- **B:** This option is the qualified and source-controlled statement.
- **C:** This option invents legislation.
- **D:** This option confuses RTI classification with ADR/PUCL disclosure.

Examiner trap 30: Distinguish an adjudicatory order from settled universal enforceability.

MCQ 31. Federal behaviour

Why is the national-centralising/regional-autonomy proposition only a tendency?

A. Recognition labels legally determine policy. B. Regional parties cannot join Union coalitions. C. A party's territorial base, organisational form and position in Union or State power can change its incentives. D. National parties never govern States.

Answer: C. A party's territorial base, organisational form and position in Union or State power can change its incentives.

Option-specific explanations:

- **A:** This option mistakes an ECI status for a policy command.
- **B:** This option is contradicted by coalition experience.
- **C:** This option is correct and supplies the causal qualification.
- **D:** This option is plainly false and ignores India's federal electoral arenas.

Examiner trap 31: Explain reversals in office/opposition rather than stereotyping party categories.

MCQ 32. Comprehensive reform

Which reform is most defensible within constitutional limits?

A. Give the ECI unrestricted power to dissolve parties without hearing. B. Prohibit all internal dissent. C. Treat every party decision as government action. D. Impose minimum transparent procedures, graded sanctions, due process and independent appeal.

Answer: D. Impose minimum transparent procedures, graded sanctions, due process and independent appeal.

Option-specific explanations:

- **A:** This option violates legality, due process and the limited-power judgment.
- **B:** This option would damage deliberation and associational freedom.
- **C:** This option erases the public-function/private-association distinction.
- **D:** This option is correct and proportionate.

Examiner trap 32: Reform public consequences and minimum procedure; do not nationalise political association.

PYQS AND ANSWER PRACTICE

DIRECT VERIFIED UPSC PYQ - 2022 GS-II Q13 - 15 marks - 250 words

Question (exact from the official paper): "While the national political parties in India favour centralisation, the regional parties are in favour of State autonomy." Comment.

Official-key discipline: UPSC does not publish an official descriptive answer key or model answer. The response below is an original examiner-oriented model; only the question wording and paper metadata are official.

Demand decode: "Comment" requires a reasoned position, causal explanation, counter-evidence and a qualified verdict. Do not merely list National and State parties.

Model answer:

The proposition captures a recurring tendency, not a permanent ideological division. National parties seeking Union power benefit from uniform programmes, central fiscal leverage and a coordinated national organisation. State-rooted parties depend more directly on linguistic, cultural, regional and fiscal claims; they therefore press for devolution, a restrained use of the Governor's office and greater consultation in Union decisions.

The coalition period after 1989 made this logic visible. Regional parties used parliamentary leverage to carry State claims into Union cabinets and bargaining over policy. They thereby deepened representative federalism, although coalition agreements could also be opaque and transactional.

Yet party position matters as much as party label. A national party in State opposition may demand autonomy; a regional party may centralise power within its own State or support Union centralisation as a coalition partner. Recognition under the Symbols Order is an electoral status, not an ideological command. Constitutional institutions therefore matter more than partisan promises: fiscal devolution, intergovernmental consultation, judicial review and federalism's basic-structure protection create durable restraints.

Thus, the statement is analytically useful but overbroad. Party incentives shift with territorial base, organisation and office; State autonomy must rest on rule-bound institutions and internally federal political parties.

Why this earns marks: It gives a qualified answer immediately, explains mechanisms, supplies coalition-era evidence, reverses the stereotype with counter-cases and ends institutionally.

PYQ route: tendency -> national incentives -> regional incentives -> coalition evidence -> reversal -> constitutional safeguard -> qualified conclusion.

ORIGINAL MAINS PRACTICE - EXACTLY SIX MODEL ANSWERS

ORIGINAL MAINS 1 - 10 marks - 150 words

Question: Distinguish registration, recognition and symbol allotment of political parties in India. Answer in 150 words.

Model answer:

India uses three separate legal gates. Registration under Section 29A of the Representation of the People Act, 1951 records an association of individual Indian citizens as a political party after organisational particulars, a constitutional-allegiance clause and an ECI hearing. It does not itself confer National or State status.

Recognition is performance-based under the Election Symbols (Reservation and Allotment) Order, 1968. A registered party becomes a recognised National or State party only by satisfying an operative alternative vote-and-seat criterion. Recognition is date-sensitive and brings specified electoral privileges.

Symbol allotment is the election-stage assignment governed by the Symbols Order and Conduct of Elections Rules. A recognised party's duly set-up candidate ordinarily receives its reserved symbol; other eligible candidates use free symbols under allotment rules.

Thus, entry, electoral status and ballot identification are connected but not interchangeable. A registered-unrecognised party remains lawful without possessing a permanently reserved symbol.

[ORIGINAL MAINS 1 MODEL ANSWER WORD COUNT: 145]

Examiner check: The answer commits to the directive, uses named law/case evidence, explains the mechanism and preserves a qualification instead of ending with a slogan.

ORIGINAL MAINS 2 - 10 marks - 150 words

Question: Why can the Election Commission not ordinarily deregister a political party at will? Answer in 150 words.

Model answer:

Section 29A gives the Election Commission a quasi-judicial power to register or refuse a political party after considering particulars and hearing its representatives. The provision, however, does not confer a general continuing power to cancel registration for every later violation.

In *Indian National Congress (I) v Institute of Social Welfare*, the Supreme Court rejected an unrestricted implied deregistration power. Narrow situations, such as fraud affecting the registration decision or a supervening declaration that the association is unlawful, remain distinguishable. Other misconduct may attract tax, criminal or recognition consequences, but those routes cannot become Section 29A cancellation.

The limit protects political competition and associational freedom from discretionary extinction. Yet it exposes a statutory gap regarding inactive parties, sham compliance and internal democracy. Parliament should define precise continuing duties, graded sanctions, narrow cancellation grounds, hearing and an independent appeal rather than leave political survival to unstructured administrative discretion.

[ORIGINAL MAINS 2 MODEL ANSWER WORD COUNT: 146]

Examiner check: The answer commits to the directive, uses named law/case evidence, explains the mechanism and preserves a qualification instead of ending with a slogan.

ORIGINAL MAINS 3 - 15 marks - 250 words

Question: Political parties are over-regulated at the electoral edge but under-regulated internally. Discuss.

Model answer:

Political parties face dense rules when they enter elections but limited enforceable standards inside the organisation. Section 29A controls registration, the Symbols Order controls recognition and ballot symbols, Sections 29B-29C regulate contributions and reporting, Section 77 addresses candidate expenditure, and the Tenth Schedule disciplines legislators. Courts have also required candidate and party disclosure of criminal antecedents.

The internal sphere is different. Party constitutions and organisational-election particulars are filed, yet no comprehensive enacted law guarantees accurate membership rolls, competitive leadership elections, transparent ticket criteria, decentralised finance or an independent internal appeal. The ECI cannot generally cancel registration for poor internal democracy: *Institute of Social Welfare* confines deregistration to narrow situations.

This imbalance matters because parties are candidate gatekeepers. Centralised ticket power can favour dynasty, finance, loyalty or winnability over inclusion and competence. Broad whips may then carry internal command into legislatures, reducing deliberation. However, total State supervision would threaten association, dissent and opposition autonomy; parties need space to organise ideology and strategy.

Reform should therefore regulate minimum democratic infrastructure rather than political outcomes: verified membership, periodic and credible elections, published candidate criteria, audited consolidated accounts, conflict-of-interest disclosure, reasoned disciplinary orders and independent appeal. Sanctions should be graded and reviewable.

India's problem is not absence of regulation but its location. Law carefully regulates the party's public electoral interface while leaving the gate through which leaders and candidates emerge comparatively opaque.

[ORIGINAL MAINS 3 MODEL ANSWER WORD COUNT: 228]

Examiner check: The answer commits to the directive, uses named law/case evidence, explains the mechanism and preserves a qualification instead of ending with a slogan.

ORIGINAL MAINS 4 - 15 marks - 250 words

Question: Examine the constitutional significance of the 2024 electoral-bonds judgment for political-party finance.

Model answer:

Association for Democratic Reforms v Union of India (2024) shifted political finance from administrative convenience to constitutional voter information. The 2018 Electoral Bond Scheme allowed bank-issued bearer instruments and shielded donor-recipient links from public scrutiny. The enabling amendments also altered disclosure under the Representation of the People Act and company law.

The five-judge Constitution Bench held that non-disclosure burdened the voter's right to information under Article 19(1)(a). Political contributions can indicate access, influence and possible quid pro quo; informed electoral choice therefore extends beyond candidate biography to party finance. The Court found the restriction disproportionate because less restrictive transparency-compatible means could address cash donations. It separately invalidated the removal of the corporate contribution cap as manifestly arbitrary under Article 14, recognising the heightened influence of companies.

The remedy was operational, not merely declaratory: bond issuance stopped, the State Bank of India had to furnish purchaser and recipient data, and the ECI had to publish it. Yet the judgment did not enact a complete campaign-finance code, fix a donation ceiling or establish public funding.

Its constitutional significance is thus twofold: transparency is a component of meaningful voting, and formally equal corporate donation rules may still be arbitrary when they permit disproportionate influence. The next step is interoperable donor, party, company and expenditure disclosure with audit and proportionate enforcement, while protecting genuinely small-donor privacy.

[ORIGINAL MAINS 4 MODEL ANSWER WORD COUNT: 224]

Examiner check: The answer commits to the directive, uses named law/case evidence, explains the mechanism and preserves a qualification instead of ending with a slogan.

ORIGINAL MAINS 5 - 20 marks - 250 words

Question: Analyse how political parties shape the quality of representative and parliamentary democracy in India. Suggest reforms.

Model answer:

Political parties convert social interests into candidates, programmes, governments and organised opposition. They simplify voter choice, recruit leaders, sustain collective responsibility and make alternation possible. India's federalised multi-party system also carries linguistic, caste, regional and sub-State claims into Union politics; coalition bargaining can deepen consultation.

The same gatekeeping power creates democratic risks. Opaque membership and centralised tickets narrow voter choice before polling begins. Dynastic succession, money power and criminal winnability can displace merit and inclusion. Broad legislative whips strengthen coherent government but weaken reasoned dissent and committee autonomy. Weak opposition reduces scrutiny, while personalised regional parties may centralise within their own States. Digital micro-targeting and hidden sponsorship further fragment accountability.

Law addresses fragments: Section 29A registration, the Symbols Order, finance disclosure, candidate affidavits and the Tenth Schedule. Yet Institute of Social Welfare limits general deregistration, and no comprehensive party law secures internal democracy. The CIC's 2013 RTI order remains contested in implementation, so transparency cannot be assumed.

Reform should establish minimum, reviewable procedures: authentic membership rolls; periodic organisational elections; published ticket criteria; representation safeguards; audited consolidated accounts; timely donor and related-entity disclosure; narrow high-stakes whips; transparent coalition agreements; digital ad libraries; and independent internal and external appeals. Sanctions should be graded, not politically annihilating.

Parties should not become departments of the State. The constitutional objective is to make their public consequences transparent and democratic while preserving ideological competition, association and dissent.

[ORIGINAL MAINS 5 MODEL ANSWER WORD COUNT: 231]

Examiner check: The answer commits to the directive, uses named law/case evidence, explains the mechanism and preserves a qualification instead of ending with a slogan.

ORIGINAL MAINS 6 - 20 marks - 250 words

Question: Discuss the legal and democratic issues arising when rival factions claim a recognised party and its election symbol.

Model answer:

A party split raises three distinct questions: organisational identity, ballot symbol and legislative defection. Paragraph 15 of the Election Symbols Order authorises the Election Commission to decide which rival group of a recognised party is that party for symbol purposes. Sadiq Ali upheld this jurisdiction and treated organisational and legislative numerical strength as valuable evidence. The symbol is a regulated electoral entitlement, not divisible private property.

The test is not mechanical. The ECI should examine the party constitution, valid organisational bodies, membership evidence, elected representatives and the reliability of rival expulsions or appointments. Kanhaiya Lal Omar anchors the Symbols Order in Article 324 and Rules 5 and 10, but Article 324 cannot override enacted law or fair hearing.

Subhash Desai supplies the institutional boundary. The political party and legislature party are distinct; party authority matters for appointing the whip and leader. The Speaker separately decides Tenth-Schedule liability, while the ECI decides prospective Paragraph 15 identity. An ECI order does not retrospectively cure defection, and two-thirds legislative support does not automatically create an organisational merger.

Democratically, majority evidence protects workable continuity, yet legislature-heavy tests may marginalise members and reward engineered defections. Decisions must therefore be prompt, reasoned and open to judicial review. Parties should maintain verified membership, transparent organisational elections and authenticated authorisation records.

The sound rule is institutional separation with evidentiary convergence: ECI for symbol identity, Speaker for defection, courts for review, and no assumption that electoral numbers alone own the party.

[ORIGINAL MAINS 6 MODEL ANSWER WORD COUNT: 242]

Examiner check: The answer commits to the directive, uses named law/case evidence, explains the mechanism and preserves a qualification instead of ending with a slogan.